

Senate Bill No. 3—Select Committee
on Health and Wellness

CHAPTER.....

AN ACT relating to public assistance; establishing the Silver State General Assistance Program within the Division of Social Services of the Department of Human Services; setting forth the powers and duties of the Administrator of the Division relating to the Program; creating the Account for the Silver State General Assistance Program; authorizing a transfer to that Account from the unrestricted balance of the State General Fund under certain circumstances; and providing other matters properly relating thereto.

Legislative Counsel's Digest:

Existing law requires the Division of Social Services of the Department of Human Services to administer various programs of public assistance. (Chapter 422A of NRS) **Sections 2-9** of this bill establish the Silver State General Assistance Program within the Division to provide temporary financial or in-kind assistance to eligible persons and households who are experiencing an extraordinary circumstance. **Section 3** defines “extraordinary circumstance” as an event, condition or situation that creates an unusual or significant need for State intervention to protect the health, safety or general welfare of the residents of this State, including a disruption in the provision of, suspension of or any related reduction in benefits provided under a program of public assistance. **Section 6** requires the Administrator of the Division to administer the Program within the limitations of available money.

Section 7 prescribes requirements relating to eligibility for assistance under the Program and requires the adoption of regulations for the administration of the Program. Under existing law, the adoption of such regulations is exempt from the Nevada Administrative Procedure Act. (NRS 233B.039) However, the Administrator is required to comply with a procedure set forth in existing law for adopting regulations for programs administered by the Division, which includes 30 days’ notice of the intended adoption. (NRS 422A.190) **Sections 7 and 13** of this bill exempt the Administrator from this procedure when adopting regulations for the administration of the Program under certain circumstances, but require such advance notice of such regulations as is practicable and the posting of the notice and regulations on the Internet website of the Division.

Section 8 sets forth certain powers of the Administrator relating to the Program. **Section 9** makes certain information obtained by the Division in the administration of the Program confidential. **Section 9** also requires the Administrator to submit an annual report regarding the Program. **Section 12** of this bill makes a conforming change relating to the confidentiality of certain information obtained during the administration of the Program.

Section 10 of this bill creates the Account for the Silver State General Assistance Program in the State General Fund for the deposit of money received for the Program. **Section 11** of this bill provides a procedure for the transfer of money from the unrestricted balance of the State General Fund to the Account for the provision of assistance under the Program for an extraordinary circumstance if there is a specified minimum balance remaining in the State General Fund after the



transfer and the Governor has declared the existence of the extraordinary circumstance.

EXPLANATION – Matter in ***bolded italics*** is new; matter between brackets ~~fornitted-material~~ is material to be omitted.

THE PEOPLE OF THE STATE OF NEVADA, REPRESENTED IN
SENATE AND ASSEMBLY, DO ENACT AS FOLLOWS:

Section 1. Chapter 422A of NRS is hereby amended by adding thereto the provisions set forth as sections 2 to 11, inclusive, of this act.

Sec. 2. *As used in sections 2 to 11, inclusive, of this act, unless the context otherwise requires, the words and terms defined in sections 3, 4 and 5 of this act have the meanings ascribed to them in those sections.*

Sec. 3. *“Extraordinary circumstance” means an event, condition or situation that creates an unusual or significant need for intervention by this State to protect the health, safety or general welfare of residents of this State, including, without limitation, a disruption in the provision of, suspension of or any related reduction in benefits provided under a program of public assistance that is funded by federal or state money.*

Sec. 4. *“Household” has the meaning ascribed to it in NRS 422A.515.*

Sec. 5. *“Program” means the Silver State General Assistance Program established pursuant to section 6 of this act.*

Sec. 6. 1. *The Silver State General Assistance Program is hereby established within the Division to provide to eligible persons and households who are experiencing an extraordinary circumstance:*

(a) Temporary financial assistance, including, without limitation, cash, electronic benefits and vouchers; or

(b) Temporary in-kind assistance,

↪ or both.

2. The Administrator shall administer the Program within the limitations of available money.

Sec. 7. 1. *For purposes of the Program:*

(a) A person or household who is determined to be eligible for any means-tested program of public assistance administered by the Division or funded by federal or state money, including, without limitation, Supplemental Nutrition Assistance, Temporary Assistance for Needy Families, Low-Income Home Energy



Assistance and Medicaid, shall be deemed to be presumptively eligible for assistance under the Program; and

(b) Any application signed and submitted by a person or household for such a means-tested program of public assistance shall be considered to be jointly processed for the purpose of determining eligibility for the Program.

2. The Administrator shall establish by regulation the criteria for eligibility for assistance under the Program for each extraordinary circumstance based on the type of extraordinary circumstance and available money. Such criteria may:

(a) Make ineligible for assistance for a particular extraordinary circumstance persons who are presumptively eligible for assistance under the Program pursuant to subsection 1.

(b) Make eligible for assistance for a particular extraordinary circumstance persons who are not presumptively eligible for assistance under the Program pursuant to subsection 1.

3. In addition to the regulations required to be adopted pursuant to subsection 2, the Administrator shall adopt:

(a) Regulations prescribing procedures governing applications for assistance, determination of eligibility for assistance and the issuance of assistance under the Program, including, without limitation, procedures for the joint processing of applications for assistance under the Program with applications for other programs of public assistance.

(b) Regulations prescribing the duration and frequency of the provision of assistance under the Program.

(c) Regulations governing the confidentiality and disclosure of information received from an applicant for or recipient of assistance under the Program and the custody, use and preservation of any records, files and communications filed with the Division concerning the Program.

(d) Any other regulations necessary for the administration of the Program.

4. The Administrator may adopt regulations pursuant to this section without complying with the provisions of NRS 422A.190 if the Administrator determines that the extraordinary circumstance requires expeditious action. If the Administrator makes such a determination, the Administrator shall provide as much advance notice of such regulations as he or she determines is practicable under the circumstances. As soon as practicable after the provision of such notice or the adoption of such regulations, the



notice or regulations, as applicable, must be posted on the Internet website of the Division.

Sec. 8. *The Administrator may:*

1. Enter into a contract with public or private entities, or both, to perform administrative or service functions under the Program.

2. Use information and systems maintained by the Division or by means-tested programs of public assistance funded by federal or state money, including, without limitation, Supplemental Nutrition Assistance, Temporary Assistance for Needy Families, Low-Income Home Energy Assistance and Medicaid, for the purpose of determining or verifying eligibility for assistance under the Program. The Administrator shall ensure that any use or disclosure of information pursuant to this subsection complies with all applicable requirements under federal or state law.

3. Accept any gift, grant, donation or other source of money to support the Program.

4. Take any other action necessary to carry out the Program.

Sec. 9. *1. Information concerning an applicant or recipient of assistance under the Program that is obtained by the Division in the administration of the Program is confidential and may be used or disclosed only as authorized under federal or state law.*

2. On or before September 30 of each year, the Administrator shall submit a report to the Director of the Department and the Director of the Legislative Counsel Bureau for transmittal to the Interim Finance Committee concerning the activities of the Program during the immediately preceding fiscal year and any recommendations for legislation relating to the Program.

Sec. 10. *1. The Account for the Silver State General Assistance Program is hereby created in the State General Fund. The Division shall administer the Account.*

2. Money received for the Program, including, without limitation:

- (a) A direct legislative appropriation to the Account;*
 - (b) A transfer from the unrestricted balance of the State General Fund pursuant to section 11 of this act; and*
 - (c) A grant, gift or donation to the Account,*
- ↪ must be deposited in the Account.*

3. The money in the Account must only be used to carry out the Program.

4. Except as otherwise provided in subsection 5 or required as a condition for the use of the money, the balance remaining in the



Account that has not been committed for expenditure on or before June 30 of a fiscal year reverts to the State General Fund.

5. All money received from a grant, gift or donation to the Account:

- (a) Must be accounted for separately in the Account;*
- (b) Must be expended in accordance with the terms of the gift, grant or donation; and*
- (c) Does not revert to the State General Fund and must be carried over into the next fiscal year.*

Sec. 11. *1. The Director of the Office of Finance in the Office of the Governor may submit a request to the State Board of Examiners to transfer money from the unrestricted balance of the State General Fund to the Account for the Silver State General Assistance Program created by section 10 of this act if:*

(a) The Director determines that such a transfer will not cause the projected ending balance of the State General Fund for the fiscal year in which the transfer is requested to be made to be less than 5 percent of the total of all proposed appropriations from the State General Fund for the operation of all departments, institutions and agencies of the State Government and authorized expenditures from the State General Fund for the regulation of gaming for that fiscal year; and

(b) The Governor has declared that an extraordinary circumstance exists.

2. The State Board of Examiners shall consider a request made pursuant to subsection 1 and shall, if it finds that a transfer should be made, recommend the amount of the transfer to the Interim Finance Committee for its independent evaluation and action. The Interim Finance Committee is not bound to follow the recommendation of the State Board of Examiners.

3. If the Interim Finance Committee finds that a transfer recommended by the State Board of Examiners should and may lawfully be made, the Committee shall by resolution establish the amount and direct the State Controller to transfer that amount to the Account for the Silver State General Assistance Program. The State Controller shall thereupon make the transfer.

4. Money transferred pursuant to this section to the Account for the Silver State General Assistance Program is a continuing appropriation solely for the purpose of authorizing the expenditure of the transferred money for the provision of assistance under the Program for the extraordinary circumstance.



Sec. 12. NRS 239.010 is hereby amended to read as follows:

239.010 1. Except as otherwise provided in this section and NRS 1.4683, 1.4687, 1A.110, 3.2203, 41.0397, 41.071, 49.095, 49.293, 62D.420, 62D.440, 62E.516, 62E.620, 62H.025, 62H.030, 62H.170, 62H.220, 62H.320, 75A.100, 75A.150, 76.160, 78.152, 80.113, 81.850, 82.183, 86.246, 86.54615, 87.515, 87.5413, 87A.200, 87A.580, 87A.640, 88.3355, 88.5927, 88.6067, 88A.345, 88A.7345, 89.045, 89.251, 90.703, 90.730, 91.160, 116.757, 116A.270, 116B.880, 118B.026, 119.260, 119.265, 119.267, 119.280, 119A.280, 119A.653, 119A.677, 119B.370, 119B.382, 120A.640, 120A.690, 125.130, 125B.140, 126.141, 126.161, 126.163, 126.730, 127.130, 127.2817, 127A.160, 127A.230, 127B.370, 127B.750, 127E.120, 128.090, 130.312, 130.712, 136.050, 159.044, 159A.044, 164.041, 172.075, 172.245, 176.01334, 176.01385, 176.015, 176.0625, 176.09129, 176.156, 176A.630, 178.4715, 178.5691, 178.5717, 179.495, 179A.070, 179A.165, 179D.160, 180.600, 200.3771, 200.3772, 200.5095, 200.604, 202.3662, 205.4651, 209.392, 209.3923, 209.3925, 209.419, 209.429, 209.521, 211A.140, 213.010, 213.040, 213.095, 213.131, 217.105, 217.110, 217.464, 217.475, 218A.350, 218F.150, 218G.130, 218G.240, 218G.350, 218G.615, 223.250, 226.462, 226.796, 228.270, 228.380, 228.450, 228.495, 228.570, 231.069, 231.1285, 231.1473, 232.1369, 232.49925, 233.190, 237.300, 239.0105, 239.0113, 239.014, 239B.026, 239B.027, 239B.030, 239B.040, 239B.050, 239C.140, 239C.210, 239C.230, 239C.250, 239C.270, 239C.420, 240.007, 240A.260, 241.020, 241.030, 241.039, 242.105, 242.1289, 242.129, 244.264, 244.335, 244.3635, 247.540, 247.545, 247.550, 247.560, 250.087, 250.130, 250.140, 250.145, 250.150, 268.095, 268.0978, 268.490, 268.910, 269.174, 271A.105, 281.195, 281.805, 281A.350, 281A.680, 281A.685, 281A.750, 281A.755, 281A.780, 284.4068, 284.4086, 286.110, 286.118, 287.0438, 289.025, 289.080, 289.387, 289.830, 293.4855, 293.5002, 293.503, 293.504, 293.558, 293.57697, 293.870, 293.906, 293.908, 293.909, 293.910, 293B.135, 293D.510, 331.110, 332.061, 332.351, 333.333, 333.335, 338.070, 338.1379, 338.1571, 338.1593, 338.1725, 338.1727, 348.420, 349.597, 349.775, 353.205, 353A.049, 353A.085, 353A.100, 353C.240, 353D.250, 360.240, 360.247, 360.255, 360.755, 360.889, 360.890, 360.945, 360.950, 361.044, 361.2242, 361.610, 365.138, 366.160, 368A.180, 370.257, 370.327, 372A.080, 378.290, 378.300, 379.0075, 379.008, 379.1495, 385A.830, 385B.100, 387.626, 387.631, 388.1455, 388.259, 388.501, 388.503, 388.513, 388.750, 388A.247, 388A.249, 391.033, 391.035, 391.0365, 391.120, 391.925, 392.029, 392.147,



392.264, 392.271, 392.315, 392.317, 392.325, 392.327, 392.335, 392.850, 393.045, 394.167, 394.16975, 394.1698, 394.447, 394.460, 394.465, 396.1415, 396.1425, 396.143, 396.159, 396.3295, 396.405, 396.525, 396.535, 396.9685, 398.310, 398A.115, 408.3885, 408.3886, 408.3888, 408.5484, 412.153, 414.280, 416.070, 422.2749, 422.305, 422A.342, 422A.350, 422A.6772, 425.400, 427A.1236, 427A.872, 427A.940, 432.028, 432.205, 432B.175, 432B.280, 432B.290, 432B.4018, 432B.407, 432B.430, 432B.560, 432B.5902, 432C.140, 432C.150, 433.534, 433A.360, 439.4941, 439.4988, 439.5282, 439.840, 439.914, 439A.116, 439A.124, 439B.2839, 439B.420, 439B.754, 439B.760, 439B.845, 440.170, 441A.195, 441A.220, 441A.230, 442.330, 442.395, 442.735, 442.774, 445A.665, 445B.570, 445B.7773, 449.209, 449.245, 449A.112, 449B.180, 449B.480, 449B.580, 450.140, 450B.188, 450B.805, 453.164, 453.720, 458.055, 458.280, 459.050, 459.3866, 459.555, 459.7056, 459.846, 463.120, 463.15993, 463.240, 463.3403, 463.3407, 463.790, 467.1005, 480.535, 480.545, 481.063, 481.091, 481.093, 482.170, 482.368, 482.5536, 483.340, 483.363, 483.575, 483.659, 483.800, 484A.469, 484B.830, 484B.833, 484E.070, 485.316, 489.431, 501.344, 503.452, 522.040, 534A.031, 561.285, 571.160, 584.655, 587.877, 598.0964, 598.098, 598A.110, 598A.420, 599B.090, 603.070, 603A.210, 604A.303, 604A.710, 604D.500, 604D.600, 612.265, 616B.012, 616B.015, 616B.315, 616B.350, 618.341, 618.425, 622.238, 622.310, 623.131, 623A.137, 624.110, 624.265, 624.327, 625.425, 625A.185, 628.418, 628B.230, 628B.760, 629.043, 629.047, 629.069, 630.133, 630.2671, 630.2672, 630.2673, 630.2687, 630.30665, 630.336, 630A.327, 630A.555, 631.332, 631.368, 632.121, 632.125, 632.3415, 632.3423, 632.405, 633.283, 633.301, 633.427, 633.4715, 633.4716, 633.4717, 633.524, 634.055, 634.1303, 634.214, 634A.169, 634A.185, 634B.730, 635.111, 635.158, 636.262, 636.342, 637.085, 637.145, 637B.192, 637B.248, 637B.288, 638.087, 638.089, 639.183, 639.2485, 639.570, 640.075, 640.152, 640.154, 640A.185, 640A.220, 640B.405, 640B.730, 640C.580, 640C.600, 640C.620, 640C.745, 640C.760, 640D.135, 640D.190, 640E.225, 640E.340, 641.090, 641.221, 641.2215, 641A.191, 641A.217, 641A.262, 641A.305, 641B.170, 641B.281, 641B.282, 641C.455, 641C.760, 641D.260, 641D.320, 642.524, 643.189, 644A.870, 645.180, 645.625, 645A.050, 645A.082, 645B.060, 645B.092, 645C.220, 645C.225, 645D.130, 645D.135, 645G.510, 645H.320, 645H.330, 647.0945, 647.0947, 648.033, 648.197, 649.065, 649.067, 652.126, 652.228, 653.900, 654.110, 656.105, 657A.510, 661.115, 665.130, 665.133, 669.275, 669.285, 669A.310, 670B.680, 671.365, 671.415,



673.450, 673.480, 675.380, 676A.340, 676A.370, 677.243, 678A.470, 678C.800, 679B.122, 679B.124, 679B.152, 679B.159, 679B.190, 679B.285, 679B.480, 679B.690, 680A.270, 681A.440, 681B.260, 681B.410, 681B.540, 683A.0873, 685A.077, 686A.289, 686B.170, 686C.306, 687A.060, 687A.115, 687B.404, 687C.010, 688C.230, 688C.480, 688C.490, 689A.696, 692A.117, 692C.190, 692C.3507, 692C.3536, 692C.3538, 692C.354, 692C.420, 693A.480, 693A.615, 696B.550, 696C.120, 703.196, 704B.325, 706.1725, 706A.230, 710.159, 711.600, *and section 9 of this act*, sections 35, 38 and 41 of chapter 478, Statutes of Nevada 2011 and section 2 of chapter 391, Statutes of Nevada 2013 and unless otherwise declared by law to be confidential, all public books and public records of a governmental entity must be open at all times during office hours to inspection by any person, and may be fully copied or an abstract or memorandum may be prepared from those public books and public records. Any such copies, abstracts or memoranda may be used to supply the general public with copies, abstracts or memoranda of the records or may be used in any other way to the advantage of the governmental entity or of the general public. This section does not supersede or in any manner affect the federal laws governing copyrights or enlarge, diminish or affect in any other manner the rights of a person in any written book or record which is copyrighted pursuant to federal law.

2. A governmental entity may not reject a book or record which is copyrighted solely because it is copyrighted.

3. A governmental entity that has legal custody or control of a public book or record shall not deny a request made pursuant to subsection 1 to inspect or copy or receive a copy of a public book or record on the basis that the requested public book or record contains information that is confidential if the governmental entity can redact, delete, conceal or separate, including, without limitation, electronically, the confidential information from the information included in the public book or record that is not otherwise confidential.

4. If requested, a governmental entity shall provide a copy of a public record in an electronic format by means of an electronic medium. Nothing in this subsection requires a governmental entity to provide a copy of a public record in an electronic format or by means of an electronic medium if:

(a) The public record:

- (1) Was not created or prepared in an electronic format; and
- (2) Is not available in an electronic format; or



(b) Providing the public record in an electronic format or by means of an electronic medium would:

(1) Give access to proprietary software; or

(2) Require the production of information that is confidential and that cannot be redacted, deleted, concealed or separated from information that is not otherwise confidential.

5. An officer, employee or agent of a governmental entity who has legal custody or control of a public record:

(a) Shall not refuse to provide a copy of that public record in the medium that is requested because the officer, employee or agent has already prepared or would prefer to provide the copy in a different medium.

(b) Except as otherwise provided in NRS 239.030, shall, upon request, prepare the copy of the public record and shall not require the person who has requested the copy to prepare the copy himself or herself.

Sec. 13. NRS 422A.190 is hereby amended to read as follows:

422A.190 *Except as otherwise provided in section 7 of this act:*

1. Before adopting, amending or repealing any regulation for the administration of a program of public assistance or any other program for which the Division is responsible, the Administrator must give at least 30 days' notice of the intended action.

2. The notice of intent to act upon a regulation must:

(a) Include a statement of the need for and purpose of the proposed regulation, and either the terms or substance of the proposed regulation or a description of the subjects and issues involved, and of the time when, the place where and the manner in which interested persons may present their views thereon.

(b) Include a statement identifying the entities that may be financially affected by the proposed regulation and the potential financial impact, if any, upon local government.

(c) State each address at which the text of the proposed regulation may be inspected and copied.

(d) Be mailed to all persons who have requested in writing that they be placed upon a mailing list, which must be kept by the Administrator for that purpose.

3. All interested persons must be afforded a reasonable opportunity to submit data, views or arguments upon a proposed regulation, orally or in writing. The Administrator shall consider fully all oral and written submissions relating to the proposed regulation.



4. The Administrator shall keep, retain and make available for public inspection written minutes and an audio recording or transcript of each public hearing held pursuant to this section in the manner provided in NRS 241.035. A copy of the minutes or audio recordings must be made available to a member of the public upon request at no charge pursuant to NRS 241.035.

5. No objection to any regulation on the ground of noncompliance with the procedural requirements of this section may be made more than 2 years after its effective date.

Secs. 14 and 15. (Deleted by amendment.)

Sec. 16. Notwithstanding the provisions of NRS 218D.430 and 218D.435, a committee may vote on this act before the expiration of the period prescribed for the return of a fiscal note in NRS 218D.475. This section applies retroactively from and after November 13, 2025.

Sec. 17. The provisions of NRS 218D.380 do not apply to any provision of this act which adds or revises a requirement to submit a report to the Legislature.

Sec. 18. This act becomes effective upon passage and approval.



